



VICTIMS OF CRIME ASSISTANCE TRIBUNAL

Ref Number: 2024/06890

LEVEL 5
555 LONSDALE ST
MELBOURNE , VIC 3000
P.O. BOX 882 MELBOURNE 3001

PHONE: (03) 96517177
TOLL FREE: 1800 882752

Email: help@vocat.vic.gov.au

22nd August 2024

BARRAN DODGER
SADLEIR
NSW 2168

Acknowledgement of Application for Assistance*Victims of Crime Assistance Act 1996*

Dear Sir/Madam

APPLICATION FOR ASSISTANCE BY BARRAN DODGER

The Tribunal acknowledges receipt of your Application for Assistance.

Attached is an Information sheet, which outlines the documents you should file to support your claim. Also attached is a Statement of Claim, which should be used to list all the types of assistance that you are claiming. This document must be completed and returned to the Tribunal along with your supporting documentation.

Once your Statement of Claim and all supporting documentation has been filed, the Tribunal will write to tell you whether you need to attend the Tribunal for a hearing. If you have not asked for a hearing then the Tribunal is satisfied an award of assistance can be made based on the material you have filed, you will receive a notice of the award of assistance made.

If we have not received your Statement of Claim and supporting documentation within 2 months, we will send you a reminder notice.

Whenever you contact the Tribunal please quote the above reference number. If you have any enquiries regarding these instructions, please contact the Tribunal on (03) 96517177

Yours sincerely,

Tribunal Officer/Registrar
Victims of Crime Assistance Tribunal

INFORMATION SHEET

WHAT YOU NEED TO PROVIDE THE TRIBUNAL NOW THAT YOUR APPLICATION IS FILED

The table below outlines what is required in support of the different types of assistance available from the Tribunal; refer to the assistance types relevant to your claim.

Assistance claimed	Documents to be filed in support of claim
Clothing worn at time of the incident	• An invoice, receipt or quote for the cost of replacing the clothing; or • A statutory declaration detailing the cost of the clothing lost or damaged (value of replacement clothing must be equivalent to the value of damaged clothes).
Counselling expenses	See Practice Direction 1 of 2021 - Awards for Counselling Expenses • A completed <i>Application for Counselling</i> form, • A relevant <i>Counsellors Report</i>, and a • <i>Counselling and Report Fee Invoice</i>.
Dependency Claims (Related victims only)	A claim for dependency arising from the death of a person needs to establish the extent of financial dependency on that person before their death. See Practice Direction 8 of 2008-Dependency Claims • A completed <i>Dependency Claim</i> form; • Details of gross pre-death earnings of the deceased (including how earnings were calculated); • Documentation verifying WorkCover payments, Transport Accident Commission payments, Social Security payments, any other payments (if any) received by you and/or deceased's estate; • Tax returns for three financial years before the death of the primary victim and the financial years for the dependency claim period for you and the deceased; • Details of your assets and liabilities and the estate of the deceased; • Details of the financial contributions made by the deceased primary victim to you for the three financial years immediately before the death of the primary victim; and • Verification of the relationship between you and the deceased (e.g. spouse, child).
Distress (Related victims only)	• Evidence of your relationship to the deceased primary victim; and • Evidence that you have suffered grief, distress or trauma as a direct result of the deceased primary victim's death (evidence may be given at a hearing).
Funeral Expenses	See Guideline 3 of 2021 - Financial Assistance for Funeral Expenses The Tribunal will obtain police material to confirm that the person's death was as a result of an 'act of violence' • A receipt, invoice or quote from the funeral service substantiating the expense claimed.

Assistance claimed	Documents to be filed in support of claim
Loss of Earnings (Primary and Secondary victims only)	See Practice Direction 5 of 2008 - Claims for Loss of Earnings • A completed <i>Loss of Earnings Claim form</i> • Advice in writing from your employer detailing number of days/weeks absent from work, reason for period of absence, and gross loss of earnings (including how gross loss was calculated); Details of sick leave taken and payments received must be included. • Medical report/certificate linking your total or partial incapacity to work to your injury; • Documentation verifying WorkCover payments, Transport Accident Commission payments, Social Security payments, any other payments (if any) received for the injury; and • If you are self-employed, tax returns for the three financial years before the act of violence occurred and the financial years for the loss of earnings claim period.
Medical Expenses	• A report from a medical practitioner/dentist linking the treatment provided/proposed to the injury sustained (the report should detail any proposed treatment plan); and • Receipts, invoices or quotes substantiating the expense claimed. • The Tribunal will obtain your hospital records if you have attended a public hospital, so you do not need to provide proof of treatment during your hospital stay. • If you are covered by Medicare or private health insurance, this should be claimed first. Any 'gap' expenses claimed must be supported by copies of invoices or receipts. See Practice Direction 1 of 2012 - Evidence of Physical Injury
Other Expenses to Recovery Assist	In exceptional circumstances, assistance may be available to pay for reasonable past or future expenses to assist your recovery. If you are claiming this type of assistance you will need to provide; • A receipt, invoice or quote substantiating the expense claimed (e.g. an invoice from the home security company, locksmith etc, or a quote if the expense has not yet been incurred). • The Tribunal will also need to know how the expense will assist your recovery.
Safety-related Expenses (Primary victims only)	• A receipt, invoice or quote substantiating the safety-related expense(s) claimed (e.g. an invoice from home security company, locksmith etc, or a quote if the expense has not yet been incurred).
Solicitors costs and disbursements	If you have a solicitor assisting you with your application, they must complete the 'Amounts Payable to Solicitor' section of your Statement of Claim form. Legal practitioners must provide written advice on the Statement of Claim of their costs and disbursements, with accounts and receipts to verify all disbursements.
Special Financial Assistance (Primary victims only)	• Evidence that you have been injured, experienced or are suffering a significant adverse effect (this evidence may be given at a hearing). • If you are claiming a psychological injury you may be required to submit a report from a qualified psychologist or psychiatrist in support. See Practice Direction 1 of 2021.

Legal Representation

If you wish, you may obtain the assistance of a lawyer.

The Victims Helpline (Ph: 1800 819 817) or the Law Institute of Victoria (Ph: 9607 9550) can give you the names of lawyers who work in this area.

The Victims Legal Service Helpline is a specialist service available to victims of crime for legal information and advice (Ph: 1800 531 566).

The Tribunal will generally pay for reasonable legal costs. You cannot be charged any extra unless the Tribunal allows it.

Proof of the incident

When an application for assistance is filed with the Tribunal, the registry will obtain any relevant police material relating to the act of violence. The material the police provide often includes evidence of physical injury, such as hospital records, medical reports and/or photographs taken of the injuries suffered as a result of the act of violence.

If you have not reported the matter to the police or the Tribunal requires additional material, you will be notified.

Related victims

If you are a related victim you are required by law to complete the enclosed *Related Victims Information Sheet* and return it to the Tribunal within the time specified.

Urgent financial assistance

You may make application for urgent financial assistance at any time prior to the final determination of the application.

Applications for urgent awards of financial assistance are made in writing by completing an *'Interim Application Form'* available on the Tribunal's website at www.vocat.vic.gov.au. You should outline the type of assistance sought and reasons for the interim request, enclosing receipts, tax invoices and other documentation in support of the expenses claimed.

If the Tribunal makes an award for urgent financial assistance it can reimburse you if you have already paid for a service or may pay the service provider directly if the award is for future expenses.

Change of address

It is important that you notify the Tribunal if you change your postal address to ensure you receive all correspondence from the Tribunal.

ACKNOWLEDGMENT

I understand and acknowledge that:

- To the best of my knowledge, all information provided in this application is true and correct and that no details relevant to the application have been left out.
- It is an offence under section 67 of the Victims of Crime Assistance Act 1996 to knowingly give false or misleading information to the Victims of Crime Assistance Tribunal.

☐ By ticking this checkbox I confirm that I have read and understood all the statements above

Full name of person completing this application: _____

Signature: _____

Date: _____

NOTE:

The Tribunal must strike out an application made out of time unless it considers that, in the circumstances, the application ought not to be struck out.

In determining whether to accept an application made out of time, the Tribunal will have regard to:

- the applicant's age at the time of the criminal act
- whether the applicant is intellectually disabled or mentally ill
- whether the person who is alleged to have committed the act was in a position of trust, influence or power in relation to the applicant
- the physical or psychological effect of the act upon the applicant
- whether the delay in making the application would cause the Tribunal any difficulties in making a fair decision
- whether the applicant was a child at the time of the act and if so, whether the application is made within a reasonable time after reaching 18 years of age
- all other relevant circumstances

ANY APPLICATION FOR EXTENSION OF TIME WILL BE STRUCK OUT IF THE ONLY GROUNDS ARE THAT THE APPLICANT WAS NOT AWARE OF HIS/HER RIGHT TO APPLY UNDER THIS ACT OR ANY PRECEDING ACT.

VICTIMS OF CRIME ASSISTANCE TRIBUNAL
STATEMENT OF CLAIM FOR PRIMARY VICTIM

CCA70

APPLICATION FOR ASSISTANCE BY: BARRAN DODGER

REFERENCE NUMBER: 2024/06890

NOTE: Complete only those sections for which you seek an award. If insufficient space, attach additional pages.

1. EXPENSES

A) AMOUNTS CLAIMED PAYABLE TO APPLICANT

Expense Category	Expense Details	Date	Description of Supporting Document/s (Please Attach)	Amount Claimed (\$)
Counselling				
Medical				
Safety-related Expenses				
Other expenses to assist recovery (in exceptional circumstances)				
Clothing worn at time of act of violence				
TOTAL				\$

B) AMOUNTS CLAIMED PAYABLE DIRECTLY TO OTHERS

Reference Number: 2024/06890

Expense Category	Expense Details	Date	Description of Supporting Document/s (Please Attach)	Name/Address of Person to be Paid	Amount Claimed (\$)
Counselling					
Medical					
Safety-related Expenses					
Other expenses to assist recovery (in exceptional circumstances)					
Clothing worn at time of act of violence					
TOTAL					\$

All supporting material must be attached to this form.
All health/insurance/medical rebates must be claimed where applicable.

2. LOSS OF EARNINGS

Are you claiming loss of earnings?

Yes ☐ No ☐

If yes, how much? \$ _____

(If making a claim for loss of earnings, you must attach a completed loss of earnings claim form which sets out how the claim is calculated).

3. SPECIAL FINANCIAL ASSISTANCE

Are you claiming special financial assistance?

Yes ☐ No ☐

4. LEGAL COSTS AND DISBURSEMENTS

A) AMOUNTS PAYABLE TO SOLICITOR

Details:

Claim for Legal Preparation: \$ _____

Substantial claims for preparation require an itemised account or bill of costs.

B) SOLICITOR'S DISBURSEMENTS

Type of Disbursement	Provider's Name	Date	Amount (\$)
TOTAL			\$

All Details/Accounts/Receipts must be provided.

Dated: / / Signature of applicant: _____

VICTIMS OF CRIME ASSISTANCE TRIBUNAL

LOSS OF EARNINGS CLAIM FORM

The Tribunal may award you assistance for loss of earnings as a direct result of total or partial incapacity to work during a period of up to two years after the occurrence of the act of violence.

IF YOU ARE CLAIMING FOR LOSS OF EARNINGS AND YOU ARE:

1. **A PRIMARY VICTIM:** The Tribunal may pay you up to \$20,000 for loss of earning suffered, or likely to be suffered, as a direct result of the act of violence.
2. **A SECONDARY VICTIM:** The Tribunal may pay up to \$20,000 for loss of earnings, suffered or reasonably likely to be suffered, as a direct result of witnessing or becoming aware of the act of violence.

NOTE: A Secondary Victim is **ONLY** entitled to loss of earnings in "exceptional circumstances".

N.B. The Tribunal will pay you your "actual loss" of earnings for the relevant period less any amounts applicable in Section (3) listed below. **To be entitled to a payment, you must have exhausted all other entitlements.**

SUPPORTING MATERIAL REQUIRED TO BE FILED:

(The following list is a guide only. All claims should be supported by documentation which verifies the figures used to calculate the amount claimed).

1. EMPLOYMENT DETAILS**If salaried employee**

Written confirmation from employer detailing:-

- a) Gross Pre-injury earnings per week
- b) Number of days/weeks absent from work
- c) Reason for period of absence
- d) Sick/Long Service/Recreation Leave payments
- e) Gross loss of income and how amount is calculated
- f) Any other supporting material

If self employed

- a) Taxation returns for the last three financial years before the act of violence.
- b) Any other supporting material

2. INCAPACITY FOR WORK DETAILS

Doctors Report/Certificate verifying details of illness/injury for the period for which you were unable to earn an income as a result of the act of violence.

3. OTHER PAYMENT DETAILS

Details of:-

- a) Workcover payments
- b) Transport Accident Commission payments
- c) Social Security payments
- d) Insurance payments
- e) Any other payments

VICTIMS OF CRIME ASSISTANCE TRIBUNAL
LOSS OF EARNINGS CLAIM FORM

CCA73a

APPLICATION FOR ASSISTANCE BY: BARRAN DODGER

REFERENCE NUMBER: 2024/06890

NOTE: If insufficient space, attach additional pages.

A. STATE YOUR WEEKLY GROSS PRE-INJURY EARNINGS

\$ _____

A

- (i) How did you calculate this amount? (example: Your taxation return shows a gross income of \$36,000 for a full year. Therefore, \$36,000 divided by 52 weeks equals weekly gross earnings of \$692).

- (ii) What documents did you use to calculate this amount? (e.g. Tax return/s for financial year/s prior to the injury, letter from your employer showing gross earnings per week).

B. YOUR POST-INJURY GROSS LOSS OF EARNINGS

Specify the period that you have been off work because of injury/illness suffered as a result of the act of violence.

Column 1	Column 2	Column 3	Column 4	Total
Date from	Date to	Total time off work (weeks/part weeks) e.g. 2.5 weeks	Enter amount specified in A above	Multiply column 3 by column 4 to calculate total loss of earnings
TOTAL				\$ B

C. LESS what you have received for:

Entitlement	Date from	Date to	Amount (\$)
Sick Pay			
Social Security Payments			
Workcover Payments			
T.A.C. Payments			
Insurance Payments			
Other Payments (provide details)			
TOTAL			\$ C

TOTAL B \$ _____

Less TOTAL C \$ _____ = TOTAL AMOUNT CLAIMED \$ _____

Dated: / /

Signature of applicant: _____